

SENATE No. 1933

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent property tax bill shocks.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>William N. Brownsberger</i>	<i>Suffolk and Middlesex</i>	<i>1/11/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>4/3/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>12/11/2025</i>

SENATE No. 1933

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 1933) of William N. Brownsberger for legislation to prevent property tax bill shocks. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent property tax bill shocks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 59 of the General Laws is hereby amended by inserting after Section 50 the
2 following section:-

3 Section 5P. (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Eligible tax shock property”, a property that is a senior qualifying property, a
6 MassHealth qualifying property, an unemployment qualifying property, or a high need
7 neighborhood qualifying property.

8 “Fourth quarter tax shock prevention credit percentage”, a percentage determined by a
9 city or town which is not more than 2/3 of the residential property tax levy growth percentage.

10 “High need neighborhood qualifying property”, a residential property which, as of July 1
11 of the tax shock year, lies entirely or partially within a qualified census tract as defined in 26
12 U.S.C. 42(d)(5)(B)(ii)(I).

“MassHealth qualifying property”, a property comprised of not more than 4 residential units at least 1 of which is occupied by an owner of the property and the owner’s household includes a person who was enrolled in MassHealth at any time during the tax shock year before December 31 of the tax shock year.

“Owner”, an owner of property or a beneficiary of a trust that is an owner of a property.

“Residential property tax levy growth percentage”, the percentage by which the residential property tax levy for a fiscal year less any portion attributable to new growth exceeds the residential property tax levy in the previous fiscal year.

“Senior qualifying property”, a property comprised of not more than 4 residential units at least 1 of which is occupied by an owner of the property who will be 65 or over as of December 31 of the tax shock year.

“Tax shock prevention credit”, a credit awarded to the owner of an eligible tax shock property against the third or fourth quarter tax bill in a tax shock year.

“Tax shock year”, a fiscal year in which the residential property tax levy growth percentage in a municipality is more than 10 per cent.

“Third quarter tax shock prevention credit percentage”, a percentage determined by a city or town which is not more than $\frac{4}{3}$ of the residential property tax levy growth percentage.

“Unemployment qualifying property”, a property comprised of not more than 4 residential units at least 1 of which is occupied by an owner of the property and where such property’s owner’s household includes a person who received unemployment benefits for not less than 12 weeks during the tax shock year before December 31 of the tax shock year.

(b) In a city or town that accepts the provisions of this section for a particular tax shock year, the city or town may award tax shock prevention credits for eligible tax shock properties subject to subsections (c) to (f), inclusive; provided, however, that the city or town may accept this section for 1 or more of the 4 types of eligible tax shock properties.

(c) Tax shock prevention credits shall not exceed the applicable tax shock prevention credit percentage applied to the second quarter tax bill for such property.

(d) The applicable quarter tax shock prevention credit percentage shall be the same for all eligible properties in the applicable tax shock year.

(e) A city or town that accepts this section shall compute and mail property tax bills as usual without applying the tax shock prevention credit to such bills; provided, however, that for eligible tax shock properties that the city or town is able to identify before sending the property tax bill, the city or town shall include in the mailing of the property tax bill a form notifying the taxpayer that the taxpayer's property is an eligible tax shock property, specifying the exact amount of the tax shock prevention credit and the amount of the property tax bill minus the credit and directing the taxpayer to send an acceptance of the credit and attestation of credit eligibility under pains and penalties of perjury along with the taxpayer's tax payment as reduced by the tax shock prevention credit; and provided further, that for properties that the city or town is unable to identify as eligible tax shock properties before sending the bill, the city or town shall include in the mailing a form specifying the exact amount of the tax shock prevention credit that the property may be eligible for and the amount of the property tax bill net of the credit and providing the taxpayer with instructions to claim the credit and reduce their tax payment by the amount of the tax shock prevention credit.

56 (f) To be effective, acceptance by a city or town of this section shall occur before the
57 mailing of third quarter tax bills and shall: (i) include the city's or town's certification that such
58 city or town has funds available to cover the cost of potential tax shock prevention credits; and
59 (ii) proof of review and approval of the certification by the division of local services.

60 (g) State agencies in possession of data that would assist a city or town in identifying or
61 verifying eligible tax shock properties shall promptly provide that data upon request.

62 (h) An acceptance of this section by a city or town shall not alter the property tax levy
63 limit for such city or town.